

TENTATIVE RULING

Case: **Lewis v. Swartz**
 Case No. CV2023-1829

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Defendant Cemex Construction Materials Pacific, LLC’s motion to compel further responses to requests for production of documents, set five is **DENIED AS MOOT**. (Code Civ. Proc., § 2031.310.) On April 7, 2026, plaintiff Ronald Lewis served supplemental responses to requests for production of documents, set five, “along with a concurrent supplemental production.” (Markey decl., ¶ 2, Exhibit A; Liu decl. ISO reply, ¶ 3.) Therefore, there is nothing remaining to compel. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16 [“Courts do not decide issues that can provide no effective relief for the parties or will have no impact on their future rights”].)

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., §§ 2031.310, subd. (h), 2023.010, subds. (e) & (i), 2023.020, 2023.030, subd. (a), 2023.050, subd. (a)(3).) First, plaintiff did not unsuccessfully oppose this motion to compel further responses. (Code Civ. Proc., § 2031.310, subd. (h).) Second, as the Court is denying defendant’s motion as moot, the Court is not determining whether plaintiff made unmeritorious objections to discovery. (Code Civ. Proc., § 2023.010, subd. (e).) Finally, plaintiff did not fail to meet and confer in good faith. (Code Civ. Proc., §§ 2023.050, subd. (a)(3), 2023.010, subd. (i), 2023.020; Liu decl., ¶¶ 10-13.) Rather, defendant did not adequately meet and confer before filing this motion. (See Code Civ. Proc., § 2016.040 [requiring a meet and confer declaration to show “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion”]; Liu decl., ¶¶ 10-13, Exhibits F & G.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Martinez v. Martinez**
Case No. CV2025-3459

Hearing Date: **April 23, 2026** **Department Eleven** **9:00 a.m.**

Defendant and cross-complainant Sergio Martinez's unopposed request to reopen discovery is **GRANTED**. (Code Civ. Proc., § 2024.050; Pillard decl. ISO ex parte application [filed April 15, 2026], ¶¶ 2-29.)

Defendant's unopposed motion to compel plaintiff and cross-defendant Servando Martinez to serve discovery responses is **GRANTED IN PART**. (Code Civ. Proc., §§ 2025.450, 2030.290, 2031.300.) As to defendant's requests for production of documents (set one), special interrogatories (set one), and form interrogatories (set one), plaintiff shall serve verified responses, without objections, together with any responsive documents by no later than **April 23, 2026, at 5:00 p.m.** As to documents requested in the notice of deposition, defendant's motion does not "set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (b)(1); Motion, Attachment E [Deposition Notice].)

Defendant's request for sanctions is **GRANTED**, in the amount of **\$2,300.65**, against plaintiff. (Code Civ. Proc., § 2023.030; Pillard decl., ¶¶ 4-6, 10.) Plaintiff shall pay the sanction by **May 26, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.